

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

20230930-DK-BUTTERFLY-1, INC., *Complainant*

v.

MSC MEDITERRANEAN SHIPPING CO. SA, *Respondent*.

DOCKET NO. 23-12

Served: December 11, 2024

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

THIRD AMENDED SCHEDULING ORDER

On December 9, 2024, a week before a joint status report describing the status of discovery is due, the parties filed a Joint Motion to Extend Deadlines, seeking a 90-day extension of the remaining deadlines from those established in the Second Amended Scheduling Order issued on September 24, 2024. The previous amendment sought by the parties for a 45-day extension was granted as requested and their proposed schedule was adopted. As noted at the time, the amended schedule closed discovery well past the date on which the initial decision was due. The Commission has extended the deadline for issue of the initial decision by 10 months to September 29, 2025, and the parties now propose an amendment that concludes briefing of the case on September 10, 2025, only 19 days before the initial decision is due. A three-month delay in addition to those the parties have already received is unreasonable.

The parties have been given generous extensions. The initial scheduling order allowed discovery to close on December 20, 2024, three and a half months after the 150-days set forth in Rule 141 and the Initial Order. Scheduling Order dated May 9, 2024. The schedule was amended in August 2024 and extended another 60-days to close discovery on February 20, 2025. First Amended Scheduling Order dated August 8, 2024. At the request of the parties a little over a month later, the schedule was amended a second time to close discovery on April 8, 2025. Second Amended Scheduling Order September 24, 2024.

Each time the parties have sought an amended schedule, they have relied on *One Banana North America Corp. v. Hapag-Lloyd AG and Hapag-Lloyd (America) LLC*, FMC Docket 22-03, a case in which the parties initially proposed closing discovery 150 days after receipt of the respondent's answer, and in which two 60-day extensions were granted prior to the parties reaching settlement, which occurred over two months before the initial decision was due. Scheduling Order dated March 29, 2022; Revised Scheduling Order dated June 22, 2022; Second Revised Scheduling Order dated October 17, 2022; Order Staying Discovery dated November 1, 2022; Initial Decision Approving Settlement Agreement dated November 16, 2022. It is unclear how that case supports the parties' motion to extend in the case *sub judice* given that if Rule 141 had been followed, discovery should have closed on September 2, 2024—150-days after

Respondent filed the answer in the instant proceeding—but would close over 300 days after that date based on the parties’ current proposal. The extensions granted in *One Banana North America Corp.* were based in part on the volume of records produced, but also because a cyber-attack occurred. Revised Scheduling Order dated June 22, 2022, at 1. Here, while the volume of documents the parties have produced to each other is significantly more than produced in *One Banana North America Corp.*, they have been producing them on a rolling basis since June 17, 2024 (Respondent), and July 9, 2024 (Complainant), a six-month period, and assert that they have been reviewing them as they are produced. *See* Joint Motion to Extend Deadlines¹ dated September 23, 2024, at 3, ¶ 5. Under the current schedule, substantial completion of document and ESI production should have been completed by November 14, 2024, nearly a month prior to the filing of the instant motion.

The three-month extension sought by the parties should not be necessary to conduct the 20-30 depositions that they contemplate based on their assertions that production of documents is nearly complete and that they have committed to provide each other known contact information, email subpoenas when possible, and conduct depositions by teleconference. Joint Motion to Extend Deadlines dated December 9, 2024, at 4, ¶ 6. If the parties have not begun noticing depositions, they must do so promptly. While the final two weeks of December are understandably dates during which depositions cannot reasonably be conducted, no good cause has been presented to delay noticing depositions so the parties can start conducting them in January 2025. The parties will be provided with a short extension of time to complete review of their document productions and complete depositions of fact witnesses. Any further requests to amend the schedule must maintain the close of discovery and briefing dates below.

Accordingly, the parties are **ORDERED** to follow the schedule set forth below:

January 16, 2025	Joint status report due describing status of discovery
February 21, 2025	Complete depositions of fact witnesses
February 21, 2025	Last day to serve interrogatories, requests for admission, and RFPs
March 7, 2025	Disclosure of initial expert reports, if any
April 7, 2025	Disclosure of rebuttal expert reports, if any
April 10, 2025	Joint status report identifying expert witnesses and summarizing the purpose of their testimony
May 9, 2025	Complete expert depositions
May 9, 2025	Close of discovery
June 9, 2025	Complainant’s initial brief, proposed findings of fact, and appendix

¹ The parties are requested going forward to identify common or repeated motions by number, e.g. Second Joint Motion to Extend Deadlines.

July 9, 2025	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
July 23, 2025	Complainant's reply brief and responses to proposed findings of fact



Linda S. Harris Crovella
Administrative Law Judge